

New Britain Borough
Minutes
July 9, 2013

The monthly meeting of the New Britain Borough Council was called to order by President Robert Belchic at 7:30 PM. All Council members were present. Also present were Mr. Mark Hintenlang, Ms. Robin Trymbiski, Mr. J. Thomas Yatsky and Mayor David Holewinski. Ms. Mary Pat Holewinski motioned to approve the minutes of the June 11, 2013 meeting as written; seconded by Mr. Craig Sturza and approved.

The first guest of the evening was Mr. Michael Carey, owner of the New Britain Inn, who was before Council for Preliminary/Final approval of improvements to the Inn. Mr. Hintenlang's letter dated July 1, 2013 was reviewed. Mr. Carey is extending the restrooms and building a second story office over the existing first floor prep room. The restroom addition creates the need for additional parking and the additional parking and a building addition greater than 500 sf requires land development. Mr. Carey is requesting a waiver from the land development process. Mr. Carey has agreed to sign an agreement stating that he will put in sidewalks if it is ever requested by the Borough. Mr. Michael Goodwin will draw-up the agreement. Mr. Carey will also make a donation to the Borough's tree bank based on the monetary value of required street trees. Ms. Margaret Remmey motioned to grant Preliminary/Final approval contingent on compliance with all comments in Mr. Hintenlang's letter dated July 1, 2013 which includes granting waivers found in sec. IV, 1-9; sidewalk agreement and tree bank donation; seconded by Ms. Mary Pat Holewinski. Mr. Peter LaMontangne wondered why the street plantings were being waived. He felt street trees should be planted at this time, on the Inn property, complimenting the vision for the Butler Avenue Revitalization. Mr. Carey responded that his main reason for asking for the waiver is a safety issue. He feels it is difficult to exit the property and that planting would get in the way of a motorist's line of sight. Mr. Hintenlang also added that if he was required to plant at this time there would need to be a developer's agreement. It was also explained that the money donated to the tree bank could be used for that exact property. Ms. Mary Pat Holewinski added that at a later time it may be easier to make sure anything done to the property will go along with the overall theme of the revitalization. Council voted and the project was approved for Preliminary/Final.

The second guests of the evening were Attorney John VanLuvanee (representing W.C. Weiss, Jr.) and developer Mr. Jack Bienenfeld. These gentlemen were before Council with a sketch plan of an apartment complex proposed for the "John Knoell" site. Mr. Bienenfeld wished to obtain Council's approval before pursuing the Land Development process. Mr. VanLuvanee had provided an aerial photo showing the property, a site plan, floor plans and a building, front, elevation plan for each Council member. Mr. Weiss has had an agreement to buy the site for the past nine months. He had first intended to develop a retail site, but feels with the new parkway and less traffic on Butler Avenue retail investors would not find it as appealing. Mr. Bienenfeld is proposing 5 buildings on the site, plus a clubhouse and pool. There would be an elevator in each building and the buildings would be three and four stories high (108 units). Rents would be from

\$1700/month and up. Mr. VanLuvanee also provided project details and a zoning comparison table which let Council know what would need to happen to make this project work. It was explained that their target market will be two income professionals. A lengthy discussion was held. There was concern about the intersection of Shady Retreat Road and Butler Avenue and increased traffic on Barrie Circle and Shady Retreat Road. Many council members when poled were also concerned about the apartment complex parking being in the front of the buildings along Butler Avenue. Mr. Cangelosi did not feel this project fell into the category of a “destination” which was one of the Borough’s ideas discussed in a previous meeting and Mr. Sturza agreed. President Belchic felt it is a good idea in this stagnant development time. Ms. Mary Pat Holewinski felt she would rather see full apartments than empty retail spaces. Ms. Margaret Remmey asked about the management of the complex, which will be an employee of Henry Bienenfeld & Son, but it was not determined if they would live on site. Mr. Gilmore asked if they had considered town houses to which he was told that Mr. Bienenfeld does not build to sell. Mr. LaMontagne was concerned with the impact on Barrie Circle and the streetscape of the complex on Butler Avenue. President Belchic hoped that improvements to the intersection of Shady Retreat Road and Butler Avenue would be something the Borough and the Developer would work together on if the project was approved. Mr. Cangelosi and Mr. Sturza remained opposed to the project. Mayor Holewinski added that he agreed with Mr. LaMontagne that the Borough needs to have a pleasing Butler Avenue view. He also stated that he would rather see an upscale full facility like the proposed apartments than a half empty facility. Ms. Marie Coia, chairman of the Community and Business committee, asked if they considered lower buildings and fewer units. Mr. Bienenfeld did not feel the numbers would warrant his investment. President Belchic would like the Community and Business Committee to meet and discuss the proposal. He would like the committee to discuss ideas related to two major concerns, the intersection and the streetscape.

Correspondence: for the month was reviewed.

June Treasurer’s Report: was reviewed.

Fire, Building, Zoning, Road and Phone/Visitor Reports: for the month were reviewed.

Manager’s Report:

Administration: Chalfont has an ARLE Grant in the amount of \$33,000 to construct the pedestrian crossing at the railroad tracks on Butler Avenue in order to continue with the sidewalks for the Safe Routes to School. SEPTA has agreed to do the work but it will now cost \$39,664. Chalfont has requested \$3,000 from New Britain, sharing the extra cost of \$6,664. Ms. Margaret Remmey motioned to contribute \$3,000 to Chalfont Borough to complete the railroad crossing work; seconded by Mr. Craig Sturza and approved.

Ms. Margaret Remmey reported on the Personnel Committee. The committee started meeting in October of 2012. They have gathered the “job descriptions” of the Borough

staff. Ms. Remmey thanked the staff for the extensive amount of time the staff has contributed during this process. The committee has now transitioned into qualifications, expectations, and performance evaluations.

The Borough summer newsletter has been distributed (thank you Marie Coia for all your work) and the Fourth of July Parade was once again a success.

The Borough has applied for an ARLE Grant from PennDot to include a westbound left-turn arrow on Butler Avenue for motorists turning south onto Tamenend Avenue. The Borough has also applied for ADA ramps at the Butler Avenue and Sand Road intersection.

Police: The Police Negotiating team has begun negotiating a contract for the Central Bucks Police Department. The Commission is still on track to regionalize January 1, 2014.

Planning Commission: The Planning Commission has recommended leaving the intersection of Butler Avenue and Tamenend Avenue one-way. The opportunity to change it to two-way was included in the CMAQ grant. Council was in agreement, so Mr. Chris Stanford will be advised of the decision.

Community Garden: The Rules and Regulations of the Community Garden have been prepared. Mr. Joseph Cangelosi motioned to approve the Rules and Regulations of the New Britain Borough Community Garden; seconded by Ms. Mary Pat Holewinski and approved. The fence has been completed. There is still room for members, if interested please contact Andrea Antell.

Open Space/Apple Orchard: Mr. Peter LaMontagne brought up the topic of the Borough forming a "Park Commission". He feels it is a good way to get the community involved and have a commission to over see the mowing, signage, improvements etc. of the Open Space. Mr. LaMontagne also suggested having volunteers construct the "bridge" connecting the Apple Orchard Open Space to the Covered Bridge Park. Mayor Holewinski suggested having Mr. Mark Hintenlang look at the area to be used. Ms. Marie Coia, chairperson of the Advisory Appointment Committee, offered to email volunteers on her list. Mr. LaMontagne and Mayor Holewinski will let her know what to include in the email. Resident Dawn Marciante suggested contacting Boy Scout Troop #36 to see if there are any scouts, working to become an Eagle Scout, in need of a project. The staff will gather information on "Park Commissions" from Doylestown Borough.

Nature Preserve/Meadow: Mr. Peter LaMontagne updated Council on the Nature Preserve and the PECO Grant. He asked for consideration on \$200 for signage and \$250 for a bronze plaque, to be put on the additional bench purchased, giving thanks to the Miller's for their generosity in allowing the Borough to purchase the easements across their properties. Ms. Mary Pat Holewinski motioned to spend \$200 of the PECO Grant money on additional signage; seconded by Mr. Jeffrey Gilmore and approved. Ms.

Margaret Remmey motioned to spend \$250 of the PECO Grant money on a plaque for a bench to be placed in the Miller easement; seconded by Mr. Craig Sturza. The plaque was approved and the voting went as follows:

Ms. Mary Pat Holewinski – nay

Ms. Margaret Remmey – yea

Mr. Jeffrey Gilmore – yea

Mr. Peter LaMontagne – yea

Mr. Robert Belchic – nay

Mr. Joseph Cangelosi – nay

Mr. Craig Sturza – yea

Expenditures: Mr. Joseph Cangelosi motioned to pay the monthly expenditures; seconded by Ms. Mary Pat Holewinski and approved.

Old Business: Mr. Craig Sturza motioned to table the ordinance on stop signs at the intersection of North Tamenend Avenue and Francis Meyers; seconded by Mr. Joseph Cangelosi and the ordinance was tabled. President Belchic added that Council needs to look at all the options. Mr. Jeff L'Amoreaux, traffic engineer, discussed his findings. It was determined that Mr. Mark Hintenlang will approach the residents in the area about not parking along North Tamenend Avenue. Mr. L'Amoreaux added that the Borough can do as it chooses, but that the stop signs might be a drastic approach. He felt working with the homeowners about parking and relocating signs rather than adding more signs might be a better approach.

New Business: Mr. Jeffrey Gilmore motioned to approve Resolution 2013-7 stating that the New Britain Borough requests a Greenways, Trails and Recreation Program Grant of \$250,000 from the Commonwealth Financing Authority to be used for trails (Tamenend Ave – Town Center); seconded by Mr. Craig Sturza and approved.

Mr. Jeffrey Gilmore motioned to approve Resolution 2013-8 stating that the Borough Manager of New Britain Borough is authorized to submit the Application for Traffic Signal Approval to the PA Dept. of Transportation and to sign the application on behalf of New Britain Borough; seconded by Ms. Mary Pat Holewinski and approved.

Resident's Remarks: Mr. Paul Cook read in the Intelligencer that New Britain Township held a shredding day for its residents. Mr. Cook was wondering if the Borough would be able to do something similar. Ms. Trymbiski will talk to New Britain Township about their project.

Mr. Robert Showalter announced a meeting on July 17th at 8:00 in the Chalfont Borough Hall. This meeting was set up by the Chalfont New Britain Business Alliance and the subject is "Historic Preservation".

Ted Malecki of 46 Barrie Circle stated that since the opening of the parkway he can finally get out of his street onto Butler Avenue in a reasonable amount of time. If the Knoell property was converted into 108 apartments with an exit onto Barrie Circle he will

have the same problems he did before the parkway. David Landis added that this project would add a couple hundred cars to the neighborhood. He also asked if Council had heard anything about the developer buying Smith Marine (this had not been brought up at any Council meetings) and that he has concerns about the apartment complex turning into student housing. Al Marciante asked if Mr. Bienenfeld had considered fewer units. Donna VonLipsey quoted Ms. Lynn Bush that whatever is built there will be there for 100 years so the Borough had better be careful. The rendering has three stories, what will four look like. Michael Stanislaw contributed that he lived in an apartment complex in Doylestown where the rents were similar and he was unhappy with the complex and is afraid this may become a similar area.

A Mathews Avenue resident thanked Council for the road closure stating that it has had a positive affect on the volume and speed on the road.

Dawn Marciante of Mathews Avenue asked if anyone knew about the pile of concrete on the side of Landis Mill Road. Mr. LaMontagne answered that the Nature Preserve committee had extra when working in the Preserve so they used it to fill in an erosion problem.

Mr. Joseph Cangelosi motioned to adjourn; seconded by Mr. Jeffrey Gilmore and the meeting ended at 9:15 PM.

Robert Belchic, President

Robin E. Trymbiski, Manager

Jane E. Kinyon, Secretary